

# Ramashray Dubey v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 20 January 2017 · Writ-C No. 2956 of 2017 · **Writ disposed; petitioner left to Clause 6.5 remedy.**

## HEADNOTE

A consumer aggrieved by an electricity bill, who sought a mandamus to decide a representation without identifying the provision under which it was filed, was left to the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005.

## FACTUAL SUMMARY

Ramashray Dubey, who had been given an electric connection by U.P. Power Corporation Limited, was aggrieved by a bill issued for electricity consumed. He filed a representation before the respondent-authorities and approached the Allahabad High Court seeking a direction that the representation be decided. Counsel for the petitioner could not identify the provision of law under which the representation had been filed.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

billing-objection-statutory-remedy

#### HOLDING

Where a consumer challenges an electricity bill by a representation whose statutory basis is not shown, the High Court will not direct the licensee to decide that representation; the consumer is to avail the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

## PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** A consumer aggrieved by an electricity bill, who sought a mandamus to decide a representation without identifying the provision under which it was filed, was left to the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — CORRECTNESS OF THE IMPUGNED ELECTRICITY BILL

Not examined on merits; petitioner left to Clause 6.5. ¶ 1